

NON-DISCLOSURE AGREEMENT — rADER Investment App

Date: _____

This Non-Disclosure Agreement ("Agreement") is entered into as of the date written above between:

Disclosing Party:

Morghan James Nunn-Menson
("Disclosing Party")

Receiving Party:

Full Name: _____

Address: _____

Relationship to Disclosing Party: _____
("Receiving Party")

Together referred to as the "Parties."

1. Background

The Disclosing Party has developed a proprietary investment intelligence application known as **rADER** (the "App"), which includes novel investment conviction algorithms, radar signal methodology, financial data analysis tools, and related intellectual property. The Disclosing Party wishes to disclose certain confidential information relating to the App to the Receiving Party for the sole purpose of obtaining feedback, discussion, and/or potential personal investment consideration ("Purpose").

2. Definition of Confidential Information

"Confidential Information" means any and all non-public information disclosed by the Disclosing Party to the Receiving Party, whether disclosed orally, in writing, electronically, visually, or by any other means, including but not limited to:

- The concept, design, and functionality of the rADER application
- Investment conviction algorithms and confidence ratio methodology
- Radar signal generation logic and scoring systems
- Source code, scripts, and technical architecture
- UI/UX designs, wireframes, and prototypes
- Business model, monetisation strategy, and pricing plans
- Financial projections, revenue models, and valuation data
- User acquisition strategies and target market data
- Any third-party data integrations or API methodologies
- Investor pipeline, partnership discussions, or commercial strategies
- Any information marked "Confidential" or that a reasonable person would understand to be confidential given the nature of the disclosure

3. Obligations of the Receiving Party

The Receiving Party agrees to:

3.1 ****Keep confidential**** all Confidential Information and not disclose it to any third party without prior written consent from the Disclosing Party.

3.2 ****Use**** the Confidential Information solely for the Purpose defined above and for no other purpose whatsoever.

3.3 ****Protect**** the Confidential Information with at least the same degree of care used to protect their own confidential information, and in any event no less than reasonable care.

3.4 ****Not copy, reproduce, or record**** any Confidential Information except as strictly necessary for the Purpose.

3.5 ****Immediately notify**** the Disclosing Party upon becoming aware of any unauthorised disclosure or use of the Confidential Information.

3.6 ****Not reverse engineer**** any software, algorithm, or technical component shared by the Disclosing Party.

4. Exclusions from Confidentiality

The obligations in Clause 3 shall not apply to information that the Receiving Party can demonstrate:

4.1 Was already in the public domain at the time of disclosure and not through any breach of this Agreement;

4.2 Becomes part of the public domain after disclosure through no act or omission of the Receiving Party;

4.3 Was already known to the Receiving Party at the time of disclosure, as evidenced by written records predating this Agreement;

4.4 Was independently developed by the Receiving Party without reference to or use of the Confidential Information;

4.5 Was lawfully disclosed to the Receiving Party by a third party without restriction on disclosure; or

4.6 Is required to be disclosed by law, regulation, or court order, provided that the Receiving Party gives the Disclosing Party prompt prior written notice and cooperates with any reasonable request to seek a protective order.

5. Non-Compete Obligation

5.1 The Receiving Party agrees that during the term of this Agreement and for a period of ****three (3) years**** following its termination or expiry, they shall not, directly or indirectly:

- Develop, build, fund, advise, or participate in any application, platform, or service that is substantially similar to or competitive with the rADER App; or
- Use any Confidential Information to create, contribute to, or improve any competing investment conviction radar, signal intelligence, or portfolio confidence scoring application.

5.2 The Receiving Party acknowledges that the restrictions in this Clause are reasonable in scope and duration given the nature of the Confidential Information disclosed.

6. No Licence or Rights Granted

Nothing in this Agreement shall be construed as granting the Receiving Party any licence, right, title, or interest in or to any Confidential Information, intellectual property, or the rADER App, whether expressly, by implication, estoppel, or otherwise. All rights in and to the App and its underlying intellectual property remain exclusively with the Disclosing Party.

7. Return or Destruction of Information

Upon written request by the Disclosing Party, or upon termination of this Agreement, the Receiving Party shall promptly:

7.1 Return all Confidential Information (including copies) to the Disclosing Party; or

7.2 Permanently destroy all Confidential Information in its possession and certify such destruction in writing.

8. Term

This Agreement shall commence on the date first written above and shall remain in full force and effect for a period of **five (5) years**, unless earlier terminated by either Party upon thirty (30) days written notice. Obligations of confidentiality shall survive the termination or expiry of this Agreement with respect to Confidential Information disclosed during its term.

9. Remedies

The Receiving Party acknowledges that:

9.1 A breach of this Agreement would cause irreparable harm to the Disclosing Party for which monetary damages would be inadequate;

9.2 The Disclosing Party shall be entitled to seek **injunctive relief** and/or specific performance in addition to any other remedies available

at law or in equity, without the requirement to post bond or prove actual damages;

9.3 The Disclosing Party shall be entitled to recover all reasonable legal costs and expenses incurred in enforcing this Agreement.

10. General Provisions

10.1 ****Governing Law & Jurisdiction:**** This Agreement shall be governed by and construed in accordance with the laws of ****England and Wales****. Each Party irrevocably submits to the exclusive jurisdiction of the courts of England and Wales.

10.2 ****Entire Agreement:**** This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions, representations, or agreements.

10.3 ****Amendments:**** No amendment or modification of this Agreement shall be valid unless made in writing and signed by both Parties.

10.4 ****Severability:**** If any provision of this Agreement is found to be unenforceable, the remaining provisions shall continue in full force and effect.

10.5 ****Waiver:**** Failure by either Party to enforce any provision of this Agreement shall not constitute a waiver of that Party's rights to enforce such provision in the future.

10.6 ****No Partnership:**** Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the Parties.

11. Signatures

By signing below, the Parties agree to be bound by the terms of this Agreement.

****DISCLOSING PARTY****

Name: Morghan James Nunn-Menson

Signature: _____

Date: _____

****RECEIVING PARTY****

Name: _____

Signature: _____

Date: _____

> Note: This document is a template and has not been reviewed by a solicitor. It is recommended that you have this Agreement reviewed by a qualified UK solicitor before relying upon it, particularly if significant commercial interests are involved.

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